

NGUYEN FLOOR AMENDMENT  
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1511  
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 28, chapter 14, article 2, Arizona Revised  
3 Statutes, is amended by adding section 28-5233, to read:

4 28-5233. Commercial motor vehicle operator; lawful presence;  
5 failure of proof; impoundment of vehicle

6 A. A PERSON WHO IS ISSUED A NONDOMICILED COMMERCIAL DRIVER LICENSE  
7 MAY NOT OPERATE A COMMERCIAL MOTOR VEHICLE IN THIS STATE UNLESS THE PERSON  
8 CAN PROVIDE EVIDENCE OF LAWFUL IMMIGRATION STATUS PURSUANT TO 49 CODE OF  
9 FEDERAL REGULATIONS PART 383 OR LAWFUL PRESENCE IN THE UNITED STATES  
10 PURSUANT TO THE ACCEPTABLE DOCUMENTS PRESCRIBED IN SECTION 41-1080.

11 B. A LAW ENFORCEMENT OFFICER MAY REQUEST EVIDENCE OF LAWFUL  
12 IMMIGRATION STATUS OR LAWFUL PRESENCE IN THE UNITED STATES PURSUANT TO  
13 SUBSECTION A OF THIS SECTION FROM A PERSON OPERATING A COMMERCIAL MOTOR  
14 VEHICLE WITH A NONDOMICILED COMMERCIAL DRIVER LICENSE.

15 C. IF A PERSON OPERATING A COMMERCIAL MOTOR VEHICLE WITH A  
16 NONDOMICILED COMMERCIAL DRIVER LICENSE FAILS TO PROVIDE EVIDENCE REQUESTED  
17 PURSUANT TO SUBSECTION B OF THIS SECTION, THE LAW ENFORCEMENT OFFICER OR  
18 THE LAW ENFORCEMENT AGENCY OF THE LAW ENFORCEMENT OFFICER SHALL:

19 1. IMPOSE A CIVIL PENALTY PURSUANT TO SECTION 28-5240.

20 2. ISSUE A CITATION PURSUANT TO THIS SECTION.

21 3. REPORT THE VIOLATION TO:

22 (a) THE JURISDICTION THAT ISSUED THE PERSON'S COMMERCIAL DRIVER  
23 LICENSE.

24 (b) THE FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION.

~~[D. A LAW ENFORCEMENT AGENCY MAY IMPOUND A COMMERCIAL MOTOR VEHICLE, AND ITS CARGO, THAT IS OPERATED BY A PERSON WHO FAILS TO PROVIDE EVIDENCE OF LAWFUL IMMIGRATION STATUS OR LAWFUL PRESENCE IN THE UNITED STATES PURSUANT TO SUBSECTION A OF THIS SECTION UNTIL THE CITATION AND ALL CHARGES RELATED TO THE IMPOUNDMENT ARE CLEARED. THE IMPOUNDMENT CHARGES ARE THE RESPONSIBILITY OF THE OWNER OF COMMERCIAL MOTOR VEHICLE.]~~

[D. IF A PERSON OPERATING A COMMERCIAL MOTOR VEHICLE WITH A NONDOMICILED COMMERCIAL DRIVER LICENSE FAILS TO PROVIDE EVIDENCE REQUESTED PURSUANT TO SUBSECTION B OF THIS SECTION, THE LAW ENFORCEMENT OFFICER OR THE LAW ENFORCEMENT AGENCY OF THE LAW ENFORCEMENT OFFICER MAY PLACE THE DRIVER ON AN OUT-OF-SERVICE ORDER AS DEFINED IN 49 CODE OF FEDERAL REGULATIONS SECTION 390.5. IF THE PERSON OPERATING THE COMMERCIAL MOTOR VEHICLE IS PLACED OUT-OF-SERVICE PURSUANT TO THIS SUBSECTION, THE LAW ENFORCEMENT OFFICER SHALL DOCUMENT THE COMMERCIAL DRIVER LICENSE INFORMATION AND IMMEDIATELY REPORT THE OUT-OF-SERVICE ORDER TO:

1. THE JURISDICTION THAT ISSUED THE PERSON'S COMMERCIAL DRIVER LICENSE.

2. THE FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION THROUGH THE COMMERCIAL DRIVER'S LICENSE INFORMATION SYSTEM OR OTHER APPROPRIATE FEDERAL REPORTING MECHANISM.

3. THE MOTOR CARRIER THAT EXERCISED OPERATIONAL CONTROL OF THE COMMERCIAL MOTOR VEHICLE AT THE TIME OF THE STOP.

E. THE MOTOR CARRIER THAT EXERCISED OPERATIONAL CONTROL OF THE COMMERCIAL MOTOR VEHICLE AT THE TIME OF THE STOP SHALL ARRANGE EITHER OF THE FOLLOWING WITHIN TWENTY-FOUR HOURS AFTER THE MOTOR CARRIER RECEIVES NOTIFICATION THAT THE PERSON WAS PLACED OUT-OF-SERVICE:

1. A REPLACEMENT PERSON TO OPERATE THE COMMERCIAL MOTOR VEHICLE WHO MEETS ALL THE REQUIREMENTS OF SUBSECTION A OF THIS SECTION.

2. REMOVAL OF THE COMMERCIAL MOTOR VEHICLE FROM THE ROADWAY BY THE MOTOR CARRIER OR COMMERCIAL MOTOR VEHICLE OWNER. IF THE COMMERCIAL MOTOR VEHICLE IS NOT REMOVED FROM THE ROADWAY WITHIN TWENTY-FOUR HOURS AS REQUIRED BY THIS PARAGRAPH, A LAW ENFORCEMENT AGENCY MAY IMPOUND THE COMMERCIAL MOTOR VEHICLE FOR A PERIOD OF NOT MORE THAN THIRTY DAYS. THE LAW ENFORCEMENT AGENCY SHALL NOTIFY THE COMMERCIAL MOTOR VEHICLE OWNER AND ANY LIEN HOLDERS OF RECORD OF THE COMMERCIAL MOTOR VEHICLE BY CERTIFIED MAIL WITHIN TWENTY-FOUR HOURS AFTER THE IMPOUNDMENT AUTHORIZED PURSUANT TO THIS PARAGRAPH THAT MUST INCLUDE ALL OF THE FOLLOWING:

(a) THE LOCATION OF THE IMPOUNDED COMMERCIAL MOTOR VEHICLE.

(b) CONTACT INFORMATION FOR RETRIEVAL OF THE COMMERCIAL MOTOR VEHICLE.

(c) A LIST OF THE REQUIRED DOCUMENTS NEEDED TO RETRIEVE THE COMMERCIAL MOTOR VEHICLE.

(d) INFORMATION REGARDING THE RETRIEVAL PROCEDURES FOR LESSORS PURSUANT TO SUBSECTION F OF THIS SECTION.

1       (e) A STATEMENT OF IMPOUNDMENT CHARGES AND RESPONSIBILITY FOR  
2 PAYMENT. THE MOTOR CARRIER OR LESSEE OF THE COMMERCIAL MOTOR VEHICLE IS  
3 SOLELY RESPONSIBLE FOR ALL IMPOUNDMENT, TOWING AND STORAGE CHARGES FOR THE  
4 COMMERCIAL MOTOR VEHICLE AND ANY CHARGES RELATED TO THE UNLOADING, THE  
5 HANDLING, APPROPRIATE STORAGE AND THE TRANSFER OF AND ADMINISTRATIVE OR  
6 OTHER FEES RELATED TO THE CARGO THE COMMERCIAL MOTOR VEHICLE WAS CARRYING  
7 AT THE TIME OF THE VIOLATION.

8       F. IF THE COMMERCIAL MOTOR VEHICLE IS OPERATED PURSUANT TO A LEASE  
9 AGREEMENT:

10       1. THE LESSEE OR MOTOR CARRIER IS SOLELY RESPONSIBLE FOR ALL  
11 IMPOUNDMENT, TOWING AND STORAGE CHARGES.

12       2. THE LAW ENFORCEMENT AGENCY OR IMPOUND FACILITY SHALL RELEASE THE  
13 COMMERCIAL MOTOR VEHICLE TO THE LESSOR ON PRESENTATION OF BOTH OF THE  
14 FOLLOWING:

15       (a) PROOF OF OWNERSHIP, INCLUDING TITLE, REGISTRATION OR OTHER  
16 DOCUMENTATION SHOWING THE LESSOR HOLDS LEGAL TITLE TO THE COMMERCIAL MOTOR  
17 VEHICLE.

18       (b) A COPY OF THE LEASE AGREEMENT OR OTHER DOCUMENTATION THAT SHOWS  
19 THE COMMERCIAL MOTOR VEHICLE WAS LEASED TO THE MOTOR CARRIER AT THE TIME  
20 OF THE VIOLATION.

21       G. THE IMPOUND FACILITY MAY PURSUE COLLECTION OF ALL FEES OR  
22 CHARGES FROM THE LESSEE OR MOTOR CARRIER THROUGH NORMAL COLLECTION  
23 PROCESSES.

24       H. THIS SECTION DOES NOT ALLOW FOR THE IMPOUNDMENT OF ANY CARGO  
25 OWNED BY A THIRD PARTY. IF THE COMMERCIAL MOTOR VEHICLE WAS TRANSPORTING  
26 CARGO AT THE TIME THE PERSON OPERATING THE COMMERCIAL MOTOR VEHICLE WAS  
27 PLACED OUT-OF-SERVICE PURSUANT TO SUBSECTION D OF THIS SECTION, THE LAW  
28 ENFORCEMENT AGENCY SHALL:

29       1. IMMEDIATELY MAKE REASONABLE EFFORTS TO IDENTIFY AND CONTACT THE  
30 CARGO OWNER, WHICH MAY INCLUDE REVIEWING ANY OF THE FOLLOWING:

31       (a) BILLS OF LADING, SHIPPING MANIFESTS OR DELIVERY DOCUMENTS  
32 LOCATED IN THE IMPOUNDED COMMERCIAL MOTOR VEHICLE.

33       (b) INFORMATION PROVIDED BY THE MOTOR CARRIER OR THE PERSON  
34 OPERATING THE COMMERCIAL MOTOR VEHICLE.

35       (c) CONTACT INFORMATION ON CARGO PACKAGING OR DOCUMENTATION.

36       2. NOTIFY THE CARGO OWNER BY TELEPHONE, EMAIL OR OTHER AVAILABLE  
37 MEANS WITHIN FOUR HOURS AFTER THE COMMENCEMENT OF ANY STOP THAT RESULTS IN  
38 THE OUT-OF-SERVICE PLACEMENT OF THE PERSON OPERATING THE COMMERCIAL MOTOR  
39 VEHICLE CARRYING THE CARGO.

40       3. NOTIFY THE CARGO OWNER BY CERTIFIED MAIL WITHIN TWENTY-FOUR  
41 HOURS AFTER THE COMMENCEMENT OF A STOP THAT RESULTS IN THE OUT-OF-SERVICE  
42 PLACEMENT OF THE PERSON OPERATING THE COMMERCIAL MOTOR VEHICLE CARRYING  
43 THE CARGO.

44       4. PROVIDE NOTIFICATION TO THE CARGO OWNER PURSUANT TO PARAGRAPHS 2  
45 AND 3 OF THIS SUBSECTION THAT INCLUDES:

46       (a) THE LOCATION OF THE CARGO.

1       (b) CONTACT INFORMATION FOR RETRIEVAL OF THE CARGO.

2       (c) A LIST OF THE REQUIRED DOCUMENTS NEEDED TO RETRIEVE THE CARGO.

3       (d) A STATEMENT THAT THE RETRIEVAL OF THE CARGO IS AT NO CHARGE TO  
4 THE CARGO OWNER. THE MOTOR CARRIER OR LESSEE OF THE COMMERCIAL MOTOR  
5 VEHICLE IS SOLELY RESPONSIBLE FOR ALL IMPOUNDMENT, TOWING AND STORAGE  
6 CHARGES FOR THE COMMERCIAL MOTOR VEHICLE AND ANY CHARGES RELATED TO THE  
7 UNLOADING, THE HANDLING, APPROPRIATE STORAGE AND THE TRANSFER OF AND  
8 ADMINISTRATIVE OR OTHER FEES RELATED TO THE CARGO THE COMMERCIAL MOTOR  
9 VEHICLE WAS CARRYING AT THE TIME OF THE VIOLATION.

10       5. PROVIDE REASONABLE ASSISTANCE FOR CARGO LOADING AND  
11 TRANSFER. THE CARGO OWNER MAY BRING EQUIPMENT OR TRANSPORTATION TO AID IN  
12 THE LOADING AND TRANSFER OF THE CARGO.

13       6. DOCUMENT THE RETRIEVAL OF THE CARGO WITH A SIGNED RECEIPT THAT  
14 MUST NOTE THE CONDITION OF THE CARGO AT THE TIME OF RETRIEVAL AND RELEASE.

15       7. IF THE CARGO CANNOT BE SAFELY STORED AT THE SCENE OF THE STOP,  
16 ARRANGE FOR APPROPRIATE STORAGE THAT MEETS THE NEEDS AND PREVENTS LOSS OR  
17 DAMAGE OF THE CARGO. APPROPRIATE STORAGE OF THE CARGO MAY INCLUDE:

18       (a) REFRIGERATION FOR PERISHABLE GOODS.

19       (b) CLIMATE CONTROL FOR TEMPERATURE-SENSITIVE GOODS.

20       (c) SECURE FACILITIES FOR HIGH-VALUE CARGO.

21       (d) PERMITTED HAZARDOUS MATERIALS STORAGE FOR HAZMAT MATERIALS.

22       (e) SPECIALIZED FACILITIES FOR LIVESTOCK OR OTHER CARGO WITH  
23 SPECIAL NEEDS.

24       8. IF THE CARGO IS PERISHABLE OR TIME-SENSITIVE OR THE CARGO IS FOR  
25 MEDICAL, EMERGENCY OR CRITICAL INFRASTRUCTURE PURPOSES:

26       (a) EXPEDITE NOTIFICATION TO THE CARGO OWNER AND FACILITATE  
27 EXPEDITED RETRIEVAL OF THE CARGO. THE CARGO OWNER MAY RETRIEVE THE CARGO  
28 IMMEDIATELY ON ARRIVAL AT THE CARGO'S LOCATION, INCLUDING OUTSIDE NORMAL  
29 BUSINESS HOURS.

30       (b) IF THE CARGO OWNER CANNOT ARRANGE IMMEDIATE RETRIEVAL OF THE  
31 CARGO, ALLOW THE CARGO OWNER TO DESIGNATE AN ALTERNATIVE CARRIER OR  
32 LOGISTICS PROVIDER TO RETRIEVE THE CARGO.

33       I. THE LAW ENFORCEMENT AGENCY OR IMPOUND FACILITY SHALL IMMEDIATELY  
34 RELEASE THE CARGO TO THE CARGO OWNER OR AN AUTHORIZED DESIGNEE OF THE  
35 CARGO OWNER AND MAY NOT CONDITION RELEASE OF THE CARGO ON PAYMENT OF ANY  
36 COSTS OR RESOLUTION OF ANY CHARGES AGAINST THE PERSON OPERATING THE  
37 COMMERCIAL MOTOR VEHICLE OR MOTOR CARRIER, ON PRESENTATION OF BOTH OF THE  
38 FOLLOWING:

39       1. PROOF OF OWNERSHIP, INCLUDING:

40       (a) THE BILL OF LADING THAT LISTS THE PERSON OR ENTITY AS  
41 CONSIGNOR, CONSIGNEE OR OWNER OF THE CARGO.

42       (b) THE PURCHASE ORDER, INVOICE OR RECEIPT THAT SHOWS OWNERSHIP OF  
43 THE CARGO.

44       (c) ANY OTHER DOCUMENTATION THAT ESTABLISHES OWNERSHIP OR RIGHT TO  
45 POSSESSION OF THE CARGO.

46       2. PROOF OF IDENTITY OF THE PERSON WHO IS RETRIEVING THE CARGO.

1       J. IT IS AN AFFIRMATIVE DEFENSE TO IMPOUNDMENT PURSUANT TO THIS  
2 SECTION IF THE MOTOR CARRIER VERIFIED THE PERSON'S COMMERCIAL DRIVER  
3 LICENSE THROUGH THE COMMERCIAL DRIVER'S LICENSE INFORMATION SYSTEM THAT IS  
4 MAINTAINED BY THE FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION AND THE  
5 DRIVER LICENSE WAS NOT SUSPENDED, REVOKED OR DISQUALIFIED AT THE TIME OF  
6 VERIFICATION.]

7 Enroll and engross to conform

8 Amend title to conform

QUANG H. NGUYEN

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C: JR

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